

9.	State Farm General Insurance Company vs. Lambert 2012-00584705	Before the court is the motion of defendants Kelly Michelle VanSchaack and James Nathan VanSchaack (collectively, Defendants) to vacate void judgment. As more fully set forth below, the motion is DENIED WITHOUT PREJUDICE. By this motion, Defendants seek to vacate the default judgment entered against them on May 24, 2013, and renewed on May 5, 2023. Defendants bring this motion under Code of Civil Procedure section 473, subdivision (d), claiming the judgment is void because they were never properly served with summons and complaint and only became aware of the case years later after judgment was entered. The motion, however, is defective in at least two ways. First, the proof of service showing the motion was allegedly served on plaintiff State Farm General Insurance Company (Plaintiff) is defective and Plaintiff has not filed any opposition to demonstrate it actually received the motion or otherwise waived the service defect on the motion. The proof of service is defective because it is signed by defendant Kelly Michelle VanSchaack. Service must be made by and the proof of service signed by a person who is not a party to the action. (See, e.g., Code Civil Proc., § 1013a(3).) The proof of service attached to the motion recognizes this requirement by stating the person signing it is “not a party to this action.” That statement, however, is clearly false in this case. Moreover, the proof of service purports to be by mail pursuant to ordinary business practices, but the proof lacks many of the statements required by Code of Civil Procedure section 1013a(3) for a valid proof of service pursuant to ordinary business practices. Indeed, section 1013a(3) sets forth several statements that must be included in a valid proof of service and many of them are lacking. To the extent the declarant personally deposited the document in the mail, a different form of proof of service is required. Second, Defendants fail to demonstrate this motion is timely. Defendants claim the judgment in this action is void based on extrinsic evidence—i.e., their declarations stating the addresses lists on the proofs of service are not valid and denying they ever received the summons and complaint—rather than void on its face. The Supreme Court recently did away with the requirement that such a motion must be brought within two years, but the Supreme Court left undisturbed that a defendant seeking such relief must still act with reasonable diligence upon learning of the judgment. (<i>California Capital Ins. Co. v. Hoehn</i> (2024))
----	---	--

		17 Cal.5th 207, 225-226 & fn. 11.) Here, Defendants do not state when or how they learned of this case and the judgment. They simply state the “only became aware of this case years later, after a judgment had already been entered.” Based on the foregoing, the motion is DENIED WITHOUT PREJUDICE. The court clerk is directed to give notice of this ruling.
10.	Flight Phase I Owner, LLC v. Incipio, LLC 202301367887	CONTINUED TO JUNE 24, 2026, to be heard in Department C61 as stated in the June 5, 2026 minute order.
11.	Melzter vs. Cardiology Specialists of Orange County 2025-01530605	Before the court is the motion to amend the judgment to add post-award prejudgment interest filed by petitioners Dr. Paul B. Melzter and Paul Meltzer, M.D., Inc. (collectively, Petitioners). As more fully set forth below, the motion is DENIED because, although the court agrees with the authorities and arguments Petitioners make, the court finds it lacks jurisdiction to amend the judgment and award pre-judgment interest at this time because respondent Cardiology Specialists of Orange County (Respondent) have filed a notice of appeal that divests this court of jurisdiction and the award of prejudgment interest is not a collateral matter in the nature of costs or attorney fees. Petitioners request the court amend the judgment to add prejudgment interest from the date the underlying arbitration award was issued on November 5, 2025, through to the date judgment was entered on March 27, 2026. Petitioners do not seek prejudgment interest on any sums prior to the date the award was issued, which the arbitrator specifically refused to grant. The law is clear that a successful petitioner in arbitration is entitled to recover prejudgment interest from the date of the arbitration award until the date judgment is entered on that award. The statutory authority for this award of prejudgment interest is Civil Code section 3287, subdivision (a). (<i>Britz, Inc. v. Alfa-Laval Food & Dairy Co.</i> (1995) 34 Cal.App.4th 1085, 1106-1107 (<i>Britz</i>); <i>Pierotti v. Torian</i> (2000) 81 Cal.App.4th 17, 27 (<i>Pierotti</i>); <i>County of Solano v. Lionsgate Corp.</i> (2005) 126 Cal.App.4th 741, 753.) As the <i>Britz</i> court explained, “[A petition to confirm an arbitration award does not seek] an award of damages and attorney fees on the original contracts [or underlying